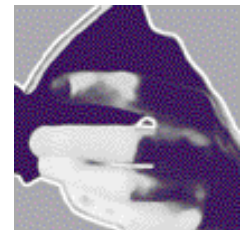


CASEFORM

FOR MEMBERS, STEWARDS, BRANCHES & REGIONS



UNISON

FOR REGIONAL OFFICE USE ONLY

Notes to help you complete this form

Please read the following notes before completing the Case Form. Answering all of the questions now will ensure that the UNISON representative has enough information to advise and assist, and will avoid any delays. The completed Case Form will also help UNISON monitor casework support to members and if need be, decide if there is a legal claim. Sections of the form need to be completed by either the member or the steward assisting the member. Other sections must be completed by the steward, and by a senior branch officer or the branch secretary. If assistance is needed from a regional officer it **is essential** that **all sections** of the Case Form have been completed before it is forwarded to the Regional Office.

To the member

In all cases you must complete section 1-15.

It is essential that all these sections are completed. All the information requested should be readily known to you, or is shown on your pay slip. If you have any difficulty in answering any of the questions, your UNISON steward should be able to assist you.

Section 4 If you have a disability which may impact on the way in which a UNISON representative would assist you, and you can identify specific needs (for example palantype, large print, or mobility needs for meetings) please indicate. We need to know if you have a partner and children in order to complete the financial information in 7 above.

Section 5 If you identify with UNISON's self-organisation and have a colleague who you would like to accompany you to meetings with your UNISON representative or with the employer, please give details.

Section 7 must be completed. If an Employment Tribunal claim needs to be made and you are on benefits or low income, a fee will not have to be paid but you will have to complete a form known as Fee Remission. You must also provide the supporting documents in Section C. If the information is incomplete your tribunal claim may be rejected.

Sections 8-9 should only be completed if they are relevant to your case.

Section 13 Please read the following notes before signing the declaration.

Section 14 Fee Advance Agreement

Please read the notes 'consideration for providing assistance' before signing this section. You should only sign this section if you agree to all the terms in relation to the fee advance. You should hand the original to your representative and ask that you be given a copy. You should keep this in a safe place for future reference. It is an agreement between you and UNISON.

When you have completed the form pass this form to your UNISON workplace representative. If there is no UNISON representative at your workplace take a copy and then send the form to your branch secretary. UNISONdirect will give you the name and address of your branch secretary – phone 0845 355 0845.

Please note the *Conditions for providing assistance* on the back page of this form. You should only sign the declaration in section 13 if you agree to all of these conditions. If you know the name and contact details for your representative, then you may detach the conditions page for your future reference; otherwise leave the page attached to the form and it will be returned to you by the representative who will deal with your case.

To the workplace representative

■ Ensure that the member has completed *all* relevant sections **1-15**, assisting the member where necessary – if needed, you can contact the Member Records staff at your branch or regional office for information.

■ Explain to the member that the financial information will be treated confidentially and will be necessary if an Employment Tribunal claim has been assessed as having reasonable prospects of success.

■ In addition, you must complete sections **15-17**.

■ If more than one member is involved, all members will need to complete relevant section **1-15** of a Case Form and you should note on each form the name and workplace of the other members who have a similar claim.

■ If the form has been forwarded to you complete, enter your contact details in the box on the tear-off slip at the back and return that section of the form to the member without delay.

■ If you should need to refer the case to a more experienced UNISON representative or your branch secretary, please ensure you forward this Case Form, with copies of all documents and correspondence, and a

summary of the actions you have taken.

To the branch secretary

■ If this form has come to you because the member has no workplace representative, please allocate a representative and enter that representative's name and contact details on the tear-off slip at the back of the form, and return that section to the member without delay.

■ If you are seeking assistance from the region, please ensure that all sections of this form are completed and sent to the regional office together with copies of any documents and correspondence which could assist – an incomplete form is likely to be returned to you, causing unnecessary delay in the member's case.

■ You must complete sections **18-22**.

■ If you think this case may involve an application to an employment tribunal, you must complete section **19** [the section on legal claims] and ensure that the member has signed the fee advance agreement in section 14 before forwarding this Case Form and relevant information to the regional office immediately.

■ If the time limit for bringing an Employment Tribunal claim is less than 28 days away, you must contact the Organiser/Case Unit immediately and mark the form for urgent assistance required. You must inform the member that an Employment Tribunal claim will only be lodged in exceptional circumstances.

■ Please sign the form to confirm that all details on the form are correct and that the member is up to date with UNISON contributions.

1. Membership details

Membership
Number

0000000

If you joined UNISON within the last 4 weeks –
please give the date you joined

2. Member's correspondence details

Title

First Name

Initial(s)

Surname

Address 1

Address 2

Town/City

County

Postcode

3. Member contact details

Home telephone number

Work telephone number

Mobile telephone number

Work extension number

Home email address

Work email address

Voice/Text number

4. Member personal details

Date of birth

National Insurance Number

Gender

Male ☐ Female ☐

Do you have a partner? Yes ☐ No ☐

Do you have children? How many children do you have?

Yes ☐ No ☐ 1 ☐ 2 ☐ 3 ☐ 4 ☐ More than 4 please state

Do you have a disability? Please state any access needs

Yes ☐ No ☐

Ethnic origin (please tick one box only)

Bangladeshi ☐

Chinese ☐

Indian ☐

Pakistani ☐

Asian UK ☐

Asian other ☐

Black African ☐Black Caribbean ☐Black UK ☐Black other ☐White UK ☐Irish ☐White other ☐

5. For members of self-organised groups – details of any SOG officer supporting you

Title	First Name	Initial(s)	Surname
Address 1			
Address 2			
Address 3			
Postcode		Contact telephone	

6. Member employment details

Job title/occupation		Payroll Number	
Employment commenced		Employment ended	
Permanent ☐	Temporary ☐	Casual ☐	Fixed Term Contract ☐
Full-time ☐	Part-time ☐	Job share ☐	
Basic hours per week		Basic wage per week	£
		OR	Basic salary per month
			£
Average take home pay per week	£	Average take home pay per month	£
Other bonuses or benefits per week	£	Other bonuses or benefits per month	£
Employer Head Office Name			
Address 1			
Address 2			
Address 3			Postcode
Workplace Name			
Address 1			
Address 2			
Address 3			Postcode

Member financial information

7. This information is necessary if a claim to an Employment Tribunal is to be made later and will help to decide if a fee has to be paid.

A Benefits

Income Based JSA ☐ Income Support ☐ Basic wage ☐ Universal Credit ☐ Scottish Civil Legal Aid ☐
Employment and Support Allowance ☐ Working Tax Credit ☐

Are you in receipt of Child Tax Credit? ☐ yes ☐ no (please tick box)

Have you attached a copy of a letter from the Job Centre/Department for Work and Pensions (DWP) Her Majesty's Revenue and Customs (HMRC) ?

☐ yes ☐ no (please tick box)

Is the letter is more than a month old: ☐ yes ☐ no (please tick box)

(If you are not in receipt of any of the above benefits but have applied for one of them please go to Section B)

Section B - Gross Annual Income

Gross annual income (before Tax and NI deductions). This is on your pay slip.

Yourself	£	Your partner	£
Income from property eg, rent	£	Income from shares or stocks	£
Pensions	£	Child Benefit	£
Any other income	£		

Are you in receipt of benefit not listed in Box A above?

Please state the benefit and the amount you receive (eg, housing benefit £50.00 per month).

£

Section C - Net monthly Income

Net monthly income – (this can be taken from your pay slips)

You

£

Your Partner

£

Net monthly expenses

Mortgage/rent or
board

£

per month

Child care
expenses

£

per month

Income from
shares or stocks

£

per month

Child
Maintenance

£

per month

Payment under a Court Order

£

Have you enclosed?

1. Your last 3 months bank statements

For you ☐ yes ☐ no

For your partner ☐ yes ☐ no

2. Your last 3 months pay slips (not more than 4 months old)

For you ☐ yes ☐ no

For your partner ☐ yes ☐ no

3. If self employed most recent Tax Returns

For you ☐ yes ☐ no

For your partner ☐ yes ☐ no

4. Self Assessment Calculation

For you ☐ yes ☐ no

For your partner ☐ yes ☐ no

5. Pension Statement

For you ☐ yes ☐ no

For your partner ☐ yes ☐ no

6. Child benefit Notice or letter

For you ☐ yes ☐ no

For your partner ☐ yes ☐ no

7. Rent Statement/invoice

For you ☐ yes ☐ no

For your partner ☐ yes ☐ no

8. Current shares docs/certificate

For you ☐ yes ☐ no

For your partner ☐ yes ☐ no

9. Official letter showing child maintenance statement

For you ☐ yes ☐ no

For your partner ☐ yes ☐ no

10. Any other documents

**8. Fitness to practice
(Please complete if member has been reported to their professional
body)**

Name of registration body

Professional registration PIN number

9. ISA Vetting and Barring scheme

Are you barred from working under the Independent Safeguarding Authority (ISA) scheme?

Barred adults list ☐ yes ☐ no (please tick box)

Barred childrens list ☐ yes ☐ no (please tick box)

If you have ticked yes to either of the above, please provide your Vetting and Barring scheme registration number

10. Case details (Please use continuation sheet if necessary)

Date of incident (or most recent incident) which is the subject of this case

If this date is within 28 days of the deadline for lodging an Employment Tribunal claim which is 3 months less 1 day from the date in the box above, please inform your member of the time limit that apply.

Please give as much detail as possible, including dates of any incidents, meetings or conversations, and who was involved. If a meeting or hearing has been arranged please give details below. Please attach copies of any relevant correspondence.

Date(s) of forthcoming hearing(s)

Type of hearing

Date(s) of forthcoming meeting(s)

Type of meeting

11. Is there anyone else with a similar claim?

Is there anyone else with a similar claim?

Yes ☐ No ☐

Check with other colleagues in the department or your workplace representative to see if anyone else has a similar claim

If Yes, please state the names of the other person or persons and their workplace address

12. What would be a solution to your problem?

please say how you want UNISON to help you

Has anyone other than UNISON advised or acted on your behalf? Yes* ☐ No ☐

*If yes, please give name and organisation of who has advised/acted and give brief details of advice given or action(s) taken

Name

Action taken

13. Declarations

I confirm and agree to the conditions of assistance set out in this Case Form. I confirm I have retained a copy for my own future reference. I understand and agree specifically to the conditions of assistance in respect of the fee advance. I confirm and agree that the information is a true and accurate record. I agree to this information being shared with a third party in respect of any actions in accordance with the Data Protection Act 1998. I understand that no information will be disclosed to any external marketing. I confirm my membership is up to date.

Signature of member

Date of member's signature

.....
Signature of branch official (*the person first handling the case*)

Date of branch official's signature

.....
Name of branch official authorising form (*the person first handling the case*)

Membership number of branch official authorising form

14. Fee Advance

I, confirm that:

I have been granted Legal Assistance by the Union. I understand and accept that the Union is authorised to advance Employment Tribunal fees to me on the terms set out below.

I agree:

1. To accept advances from the Union equal to the Employment Tribunal fees in my case in the event that my application for a fee remission is rejected.
2. That these amounts are repayable by me in the event that my Employment Tribunal claim or part of it succeeds to any extent, whether by settlement, compromise agreement, Judgment or otherwise. I, therefore, agree and authorise that all sums recovered in my case will be held by the Union (or the Union Solicitors) to retain (or repay to the Union) the sums advanced and pay the balance to me. I understand that the Union has instructed its solicitors to take all possible steps to recoup these amounts from the defendants and that it also has a discretion to waive all or part of the repayment where it considers appropriate.
3. That I have complied with the Union's Conditions of Legal Assistance and will continue to do so. I understand that the amounts accepted under 1 above are repayable by me immediately in the event that Legal assistance is withdrawn following any failure by me to comply with the Conditions of Legal Assistance.

I acknowledge that the Employment Tribunal fees remain my personal liability and that the amounts referred to will be paid direct to the Employment Tribunal on my behalf.

Signature of member

Date of member's signature

15. Workplace representative's details (i.e. person handling the case)

Membership Number			Title	
First Name		Mid Initial(s)	Surname	
Address 1				
Address 2				
Town/City				
County				
Postcode		Position held in branch		

16. Employer contact - details of manager you have been dealing with

Name	
Address line 1	
Address line 2	
Town/City	
County	
Postcode	Telephone Number

17. Details of action taken

If the member's complaint is a grievance matter, please confirm whether the member's complaint has been put in writing to the employer. If not, please explain the reason for not doing so. Otherwise please enter the date of the letter to the employer and attach a copy to this form.

Date of letter

If the member has been disciplined by the employer, please confirm whether the member has lodged an appeal in writing to the employer. If not, please explain the reason for not doing so. Otherwise please enter the date of the letter to the employer and attach a copy to this form.

Date of letter

18. Branch details

Branch Number/
Code

03512

Service Group

Health

Branch Name

London Ambulance Service Branch

Address 1

London Ambulance Service HQ

Address 2

220 Waterloo Road

Town/City

London

County

Postcode

SE1 8SD

Telephone Number

19. Is there a legal claim?

If YES please give the date of the incident and tick one of the options below:

Date:

Breach of contract
Unlawful deduction from wages
Holiday pay
Unfair dismissal
Redundancy
Discrimination
Maternity/pregnancy
TUPE
Trade union detriment
Protective award
Any other (please state)

☐
☐
☐
☐
☐
☐
☐
☐
☐
☐
☐

.....

If you ticked discrimination please state the protected characteristic:

Age
Disability
Gender reassignment
Maternity/pregnancy
Race
Religion or belief
Sex
Sexual orientation

☐
☐
☐
☐
☐
☐
☐
☐

Please give a brief description of the incident which took place (continue on a separate sheet if necessary).

20. Action taken by branch secretary and regional assistance required

Please state what action you have taken on behalf of the member what further action you think is needed; give the dates of any forthcoming meetings or hearings. Please attach copies of any relevant correspondence.

21. Check List

Has the member completed Section 1:

Yes ☐

No ☐

If a legal claim has been identified, has this been discussed with the Organiser/Case Unit?

Yes ☐

No ☐

Have you explained the declaration?

Yes ☐

No ☐

Have you explained the fee advance agreement and has the member signed it?

Yes ☐

No ☐

Are the following documents attached?

Contract of employment ☐

Dismissal letter ☐

Appeal letter ☐

Grievance letter ☐

Disciplinary procedure ☐

Redundancy procedure ☐

Redeployment procedure ☐

Grievance procedure ☐

Sickness absence ☐

Disability discrimination policy ☐

Any other

Incomplete information will need to delays and may mean the member loses the opportunity to lodge an Employment Tribunal claim.

22. Branch secretary authorisation

Name
Eric Roberts

Signature

Date of branch secretary's signature

FILE NUMBER		FOR REGIONAL OFFICE USE ONLY	
CASE TYPE		SUB TYPE	

Conditions for providing assistance

- UNISON seeks to ensure that members are provided with the best possible advice and assistance to achieve a satisfactory outcome to matters of grievance and discipline. UNISON will determine the most appropriate representative for your case. This may mean reallocating the case at a later stage and you will be informed of any such decision.
- UNISON representatives and members are expected under UNISON rule to treat one another with respect. Failure to do so by a UNISON representative will entitle you to make a complaint in accordance with UNISON's Complaints Procedure [<http://www.unison.org.uk/acrobat/B3013.pdf>]. Failure by you to treat your representative with respect may lead to support being withdrawn from you.
- At all times, action taken on your behalf will be on the basis of agreement reached between you and your representative about the best way UNISON can assist you. Throughout the procedure you will be kept informed and no decision will be made without first consulting you. You are free not to accept the advice of your UNISON representative, and to proceed without UNISON assistance.
- The fee advance agreement must be signed if there is a potential legal claim identified. UNISON will support a claim to an Employment Tribunal, where a legal claim has been assessed as having reasonable prospects of success by our solicitors.
- UNISON representation is provided on the understanding that UNISON is your sole representative. UNISON cannot be held responsible for any costs or expense incurred if you have opted out from UNISON assistance or if UNISON representation has been withdrawn. Nor will UNISON be responsible for providing assistance in respect of any appeal or higher level hearing against a decision arising from representations made after you have opted out from UNISON assistance or after UNISON assistance has been withdrawn.
- You are expected to cooperate with your representative by being honest and frank about any allegation against you and in respect of any grievance you have. Your representative can only assist you if in possession of the full facts. Failure to cooperate can lead to UNISON support being withdrawn.
- You must notify your representative immediately if your circumstances change or if any new information comes to light regarding your case.
- You must ensure that your personal and financial information is accurate and up to date at the time. If you have given information which is misleading UNISON have the right to withdraw support.
- In the event of UNISON support being withdrawn you have the right to appeal, to your branch secretary in the first instance unless notified otherwise.
- You must remain a member of UNISON throughout any period during which UNISON is providing advice and assistance to you. This means that if you are unemployed by reason of dismissal or redundancy you must pay a UNISON subscription at the Unemployed Member's rate; if you gain new employment within or outside of the areas of UNISON organisation you must maintain a UNISON subscription according to your earnings band as set out in Schedule A of the UNISON Rule book.
- UNISON reserves the right to use the details of your case and outcome in publicity, case study or learning materials, subject to your name only being used with your permission.

To be returned to, and retained by, the member

Your case has now been referred to the UNISON representative whose name and contact details are recorded below. Assistance will be provided in accordance with UNISON's scheme for representing members and the conditions outlined overleaf.

If, following your initial discussions, it is agreed that the representative will act on your behalf, any action will normally be done in consultation with yourself. Your representative should keep you routinely informed of any developments, and you should note short periods of non-communication may simply mean that your representative is waiting for someone (for example an employer, a witness) to respond to a letter or message. Please respect that most lay officers are doing a voluntary job in their own time. However, if necessary, please feel free to contact your representative to avoid undue stress to yourself.

The name of your UNISON representative is:

Contact details:

work tel:

mobile:

home tel:

email:

address: